

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
EMMANUEL JALLAH,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, JOHN DOES 1-20, agents
of the defendants, names being fictitious as
their true identifies are unknown at this time,

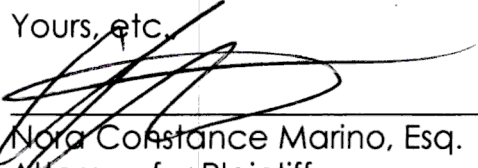
Defendants.
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
December 14, 2018

Yours, etc.



Nora Constance Marino, Esq.
Attorney for Plaintiff
175 East Shore Road, Suite 230
Great Neck, New York 11023
516.829.8399
File No.: 1611

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

P.O. JOHN DOES (1-50)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
EMMANUEL JALLAH,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, the NEW YORK CITY POLICE
DEPARTMENT, and JOHN DOES 1-20, agents of the
defendants, names being fictitious as their true
identifies are unknown at this time,

Defendants.

-----X

Plaintiffs, by their attorney, NORA CONSTANCE MARINO, ESQ. complaining
of the Defendants herein, respectfully show this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff EMMANUEL JALLAH ("JALLAH") was and still is a resident of the County of Richmond, State of New York.
2. That at all times hereinafter mentioned, defendant CITY OF NEW YORK ("CITY") was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.
3. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, defendants John Does 1-20, names being fictitious as names are unknown at this time, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

5. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

6. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

7. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in writing upon the defendants THE CITY OF NEW YORK.

9. That a 50-H hearing was held for each claimant.

10. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

11. Plaintiffs repeat, reiterate, and reallege all of the allegations set forth above.

12. On March 12, 2018 at approximately 5:30 pm plaintiff and friend Kyle Beaton along with 4-5 other friends were standing in the lobby of 55 Boeing Street, Staten Island. Plaintiff was on his way to Physical Therapy at 24 Bradley Ave., Staten Island.

13. Plaintiff decided to take a cab to his physical therapy, so one of his friends named "Tone" ordered a LYFT car through an app for plaintiff. A driver and vehicle were assigned by Lyft.

14. The Lyft car arrived around 5:30-6:00 pm. Tone notices that the driver is someone that he (Tone) had an issue with prior thereto. Tone thus tried to cancel the ride on his app on his phone but is unable to do so. Tone asks Kyle Beaton to cancel the ride. Kyle Beaton approaches the car and speaks to the driver through the window; plaintiff gets in the car. Kyle Beaton then enters the car after plaintiff; conversations ensued about canceling the car versus not cancelling the car. The driver was refusing to cancel the ride. Kyle Beaton then took the driver's phone, which was not on the driver's body, but rather in a holder in the car, steps outside the car, and cancels the ride from the driver's phone. Plaintiff exits the car; Kyle Beaton returns the phone to the driver.

15. The Lyft driver then exits the car and recognizes Tone, and starts yelling, "police", "help", "gun". The driver made racial slurs to the plaintiff and

Kyle Beaton. The Lyft driver then calls 911 from his phone. Plaintiff, Kyle Beaton, and the other two friends left the area. All of this was captured on building surveillance video which was readily available and/or viewed by the police and defendants.

16. Because of the readily available video, the police knew or should have known that no crimes took place; yet, regardless, a warrant had been issued for plaintiff's arrest.

17. Plaintiff was subsequently charged with Robbery in the First Degree, Robbery in the 2nd Degree, Robbery in the 3rd degree, Grand Larceny, and Petit Larceny, inter alia. Plaintiff surrendered himself April 27, 2018, 10:00 a.m., to the 120th Precinct, Staten Island. Upon information and belief, plaintiff was charged with stealing the driver's phone, despite the fact that the driver had his phone and even called 911 from that very phone; thus, clearly no theft had occurred.

18. Following his surrender on April 27, 2018, plaintiff was processed (photos, fingerprints) by 10:30 am. He could have been taken to court for arraignment at that time. Instead, plaintiff was held at the precinct. He was told that detectives wished to speak to him. Plaintiff informed the detectives that he was requesting to speak to his attorney. The detectives and other agents of the city and/or NYPD continued to speak to plaintiff and ask questions; they threatened plaintiff that if he refused to speak to them, and refused to waive his right to counsel, that plaintiff would be "sleeping" at the precinct. Consequently, plaintiff was retained at the precinct for almost 24

hours. Plaintiff was not transported to court until 10:30 a.m. the next day; plaintiff was unnecessarily held at the precinct for this additional time in a retaliatory manner.

19. Plaintiff was subsequently brought before a grand jury, who, based on plaintiff's testimony and the video which was presented, refused to indict the plaintiff.

20. Prior to plaintiff surrendering, defendants herein provided inaccurate and defamatory information to the news periodical the Staten Island Advance, as well as posted same on social media, knowingly sharing false content that was in direct contradiction to the events that transpired and were readily available and verifiable on video.

21. Defendants were fully aware that plaintiff committed no crime, as the events were fully available on video, and defendants obtained that video, or should have obtained that video. Upon information and belief, said video was played during plaintiff's grand jury proceedings, so clearly defendants were aware of it and possessed it. Despite knowing the contents of the video, and knowing no crime was committed by plaintiff, defendants proceeded with arresting, detaining, and prosecuting plaintiff, who clearly had committed no crime.

22. Defendants posted "wanted" posts for plaintiff on social media and also provided misinformation and false information to silive.com for further internet slander, libel, and defamation.

FIRST CAUSE OF ACTION
FALSE ARREST

23. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

24. Defendants used excessive force, assaulted, punched, kicked, handcuffed, threatened, and deprived plaintiffs of his liberty, freedom, and constitutional rights, despite the fact that plaintiff had not committed a crime or violation.

25. That the defendant officers arrested plaintiff despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention and/or videotaping.

26. That at all times, the officers acted within the scope of their employment of defendants NYPD and under the authority of color of state law as police officers.

27. The aforescribed constitutional violations are all actionable under and pursuant to New York State Law, the New York State and Federal Constitution.

28. Although the defendants knew that detaining and arresting plaintiffs when they had no right to do so, in violation of plaintiffs' constitutional rights, the defendants criminally processed the plaintiff, generating misleading and false accusatory instruments in order to lay charges against plaintiff, even though defendants knew or had reason to know that they were making an

illegal arrest.

29. Defendants also illegally and unnecessarily detained the plaintiff without any justification to do so.

30. By virtue of the foregoing, plaintiff, JOHN GURINO, has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND
RETENTION UNDER NEW YORK STATE LAW

31. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

32. Defendant NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant NYPD was careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

33. John Does were acting in the scope of their employment when they failed to properly execute their duties, failed to protect the plaintiff.

34. John Does were performing actions to further their employer's (the city defendants) interest, or to carry out duties incumbent upon the employ in furthering the employer's business.

35. That by reason of the foregoing, plaintiff requests an award of damages, which exceeds the jurisdictional limits of all lower, courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION**MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986
AND RESPONDEAT SUPERIOR**

36. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

37. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendant NYPD.

38. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

39. Defendants detained, arrested, assaulted, battered, and victimized plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

40. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

41. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological

nature.

FOURTH CAUSE OF ACTION
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

42. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

43. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless, and negligent.

44. That as a result of the above referenced negligence; Plaintiffs were caused to sustain damages and their constitutional rights were violated.

FIFTH CAUSE OF ACTION
EXCESSIVE FORCE

45. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

46. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by defendants.

47. As a direct and proximate result of the unlawful excessive force used against plaintiff by defendants deprived plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

48. Defendant officers used excessive force against plaintiff with knowledge that plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

49. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

50. That one of or more than one of the defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.

51. That one of or more than one of the defendant officers prepared and filed charges against plaintiffs with malice and the intent of depriving plaintiff of his liberty and right to not have their person seized knowing they had no cause or grounds to do so.

52. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiffs with the intent to deprive Plaintiffs of

their constitutional rights.

53. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACTION
ABUSE OF PROCESS

54. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

55. Without plaintiff's consent, one or more of the defendant officers harmfully and offensively touched Plaintiffs by grabbing them, restraining them, handcuffing them, and unlawfully and unconstitutionally deprived the plaintiffs of their liberty and freedom.

56. That one or more of the defendant officers threatened plaintiff without justification, provocation or cause.

57. The defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the plaintiffs, yet they chose to regardless. The

defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

EIGHTH CAUSE OF ACTION
INFLECTION OF EMOTIONAL DISTRESS

58. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

59. Defendants intentionally and deliberately inflicted emotional distress upon plaintiff; defendants negligently inflicted emotional distress upon plaintiff; by maliciously detaining him, assaulting him, restraining him, handcuffing him, falsely arresting him, threatening him; and depriving the plaintiff of his liberty and freedom, and in abusing plaintiff.

NINTH CAUSE OF ACTION
DEFAMATION PER SE

60. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

61. Defendants charged plaintiff with a serious crime, causing irreparable damage and injury to plaintiff, constituting defamation per se.

TENTH CAUSE OF ACTION
INTERNET DEFAMATION

62. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

63. Defendants charged plaintiff with a serious crime, causing irreparable damage and injury to plaintiff, constituting defamation per se.

64. Defendant made false and damaging statements using the internet; defendants made false and damaging statements on websites and/or blogs and/or social media posts, and/or any other online venue.

ELEVENTH CAUSE OF ACTION
DEFAMATION

65. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

66. Defendants made false and/or defamatory statements about the plaintiff; defendant published said statements to a third party without privilege or authorization; with fault amounting to at least negligence; that caused damages to plaintiff.

TWELFTH CAUSE OF ACTION
NEGLIGENCE

67. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

68. That the aforesaid defendants, without cause or provocation,

negligently, carelessly, and recklessly detained, arrested, and threatened the plaintiff despite knowing that no laws, rules, or regulations were violated, without grounds, and without cause.

THIRTEENTH CAUSE OF ACTION
PUNITIVE DAMAGES

69. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

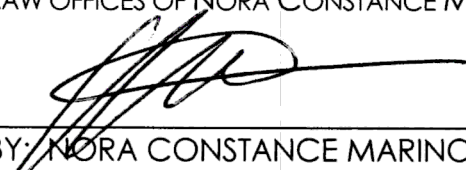
70. The acts, conduct and behavior of the defendants warrant punitive damages.

As a result of defendants' actions, plaintiff suffered damages.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: December 14, 2018
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO


BY: NORA CONSTANCE MARINO, ESQ.
Attorneys for Plaintiffs
175 East Shore Road, Suite 230
Great Neck, NY 11023
516-829-8399
nora@marinojustice.com
File No.: 1611

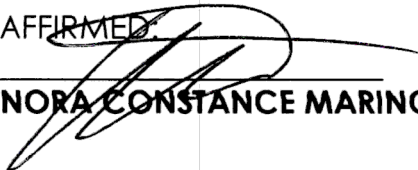
ATTORNEY VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NASSAU) ss.:

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: December 14, 2018
Nassau County, NY

AFFIRMED


NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.:

EMMANUEL JALLAH,

Petitioner,

- against -

CITY OF NEW YORK, et al.

Respondent.

SUMMONS AND COMPLAINT

Law Offices Of
NORA CONSTANCE MARINO
Attorney for Plaintiff
Office and Post Office Address, Telephone
175 East Shore Road
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____ 20__

Nora Constance Marino

To :

*Service of a copy of the within
is hereby admitted.*

Dated: _____ 20__

Attorney(s) for:

PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in the office of the clerk of the within named court on _____ 20__

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the